NDIS Quality and Safeguards Commission

EXECUTIVE BRIEF

Executive: Branch Head Operations, North Central West **PDR:** EC22-002581
Executive action: For decision
Critical date: By 21/12/2022, in order to meet legislative requirements.
PDMS cc: Ms Sutcliffe, Ms Walker, Ms Awwad, Mr Barr

NOTICES TO REVOKE REGISTRATION AND ISSUE BANNING ORDER TO FORWARD FOCUSED GROUP; NOTICE TO ISSUE BANNING ORDER TO VIDA REID

Recommendation/s	Executive Action
1. That you note the Brief about the revocation of registration and Banning Order for Forward Focused Group Pty Ltd and the Banning Order for Ms Vida Reid.	Noted
2. That you approve the revocation of registration and Banning Order for Forward Focused Group Pty Ltd.	Approved
3. That you approve the Banning Order for Ms Vida Reid.	Approved
4. A) That you sign and issue the notice to revoke the registration to the NDIS provider Forward Focused Group Pty Ltd. (Attachment 1) B) That you sign and issue the notice of a Banning Order to the NDIS provider Forward Focused Group Pty Ltd. (Attachment 2)	Signed x2
5. That you sign and issue the notice to issue a Banning Order to Vida Reid for a period of ten years. (Attachment 3)	Signed

20/12/2022

X Philip Halton

Signed by: PH0055

Philip Halton, Branch Head, Operations - North Central West Region

Comments:

Amended term of personal BO on Ms Reid to 5 years duration. PH 20 December 2022

Key Points

1. The Commission holds information to suggest that Forward Focused Group Pty Ltd (the Provider), REG ID 4-4GHG-1073, and the former Director Ms Vida Reid have contravened, are contravening or are proposing to contravene the *National Disability Insurance Scheme Act 2013* (the Act), by failing to comply with their obligations.

2. The Commission issued separately: Notices of Intention to issue a Revocation of Registration, and Banning Order to the Provider; and a Notice of Intention to issue a Banning Order to Ms Vida Reid.
3. The Provider and Ms Reid chose to engage legal representation, Tom & Co Legal Pty Ltd ("Tom & Co Legal").
4. The legal representation has issued a single, joined submission on behalf of Forward Focused Group and Ms Reid.
5. The analysis of the available information, including the submissions, has reached a view that you progress to issuing the Revocation of registration and Banning Order to the Provider, and the Banning Order to Ms Reid.
6. If you approve the decision the NDIA will be notified of the update to the status of the relevant parties.

Risks / Sensitivities

7. The individuals involved have participated in local (WA) meetings with Federal Ministers. If the Commission decides to proceed to the completion of the notices then the loss of income will be substantial. Historical interactions with the individual/s indicate that the Commission should be prepared for a retaliatory response.
8. On 11 November 2022, Ms Reid lodged a request for an internal review of the Commission's decision to suspend the registration of Forward Focused Group. The Commission sent an acknowledgement letter to Ms Reid dated 15 November 2022, inviting Ms Reid to make submissions in support of her request by 16 December 2022. The Commission is due to make a decision by 9 February 2023.
9. It is considered important to maintain a consistent message about the Provider's inability to offer safe and quality supports and services and ensure public trust in the NDIS is not jeopardised.

Background

10. The Commission holds information to suggest that Forward Focused Group Pty Ltd (REG ID 4-4GHG-1073) and the former Director Ms Vida Reid have contravened, are contravening or are proposing to contravene the *National Disability Insurance Scheme Act 2013* (the Act), by failing to comply with their obligations.
11. The information held by the Commission that indicate contraventions of the Act by Forward Focused Group and Ms Reid are held in PDMS record EC22-002000.
12. On 19 October 2022, you issued:
    - 12.1. Notice suspending the registration of the NDIS provider Forward Focused Group Pty Ltd (Forward Focused Group) for a period of thirty (30) days, with immediate effect
    - 12.2. Notice of Intention to revoke the registration and issue a Banning Order to Forward Focused Group
    - 12.3. Notice of Intention to issue a Banning Order to Vida Reid for a period of ten (10) years.
13. The Notices of Intention to revoke the registration and make Banning Orders against Forward Focused Group and Vida Reid provided 28 days for the Provider and Ms Reid to make submissions. The original due date as stated in the Notices was 16 November 2022.
14. On 19 October 2022, Ms Reid was charged at the Armadale Police Station and appeared in Armadale Magistrates Court of WA.
15. Ms Reid was charged with the following offences:
    - 15.1. Between 1 December 2021 and 17 May 2022 at Perth in the State of Western Australia, Vida REID dealt with money or other property, it being reasonable to suspect that such money or other property was proceeds of crime and at the time of dealing the value of the

money or property was more than $100,000, contrary to section 400.9(1) of the Criminal Code (Cth).

15.2. That between 26 December 2021 and 23 June 2022 at Perth in the State of Western Australia, Vida REID dealt with money or other property, it being reasonable to suspect that such money or other property was proceeds of crime and at the time of dealing the value of the money or property was more than $100,000, contrary to section 400.9(1) of the Criminal Code (Cth).

15.3. That between 30 November 2021 and 8 April 2022 at Perth in the State of Western Australia, Vida REID caused payment requests to be submitted, which he knew to be false, to the National Disability Insurance Agency (NDIA), a Commonwealth entity, with the intention of dishonestly causing a loss, contrary to section 135.1 (3) of the Criminal Code (Cth).

15.4. That between 18 November 2021 and 19 April 2022 at Perth in the State of Western Australia, Vida REID caused payment requests to be submitted, which he knew to be false, to the NDIA, a Commonwealth entity, with the intention of dishonestly causing a loss, contrary to section 135.1 (3) of the Criminal Code (Cth).

16. On 31 October 2022, the Commission received a letter by Tom & Co Legal advising that they act for Forward Focused Group and Vida Reid. The lawyer responsible is Tom Monks ("Mr Monks"), Principal Director.

17. The letter sought "disclosure of all relevant information and materials" from the Commission and a 28-day extension on the due date of 16 November 2022 for submissions.

18. On 15 November 2022, you replied via letter to Mr Monks advising that the Commission is satisfied that the notices of 19 October 2022 adequately disclosed the reasons and information that gave rise to the notices of intention. The letter also provided Forward Focused Group and Ms Reid with a fourteen (14) day extension on the due date for submissions to 30 November 2022.

19. On 21 November 2022, you issued a Notice suspending the registration of Forward Focused Group for a further period of 30 days, with immediate effect. The current suspension of registration expires on 21 December 2022.

Compliance QLD Review of the Submission

20. On 30 November 2022, the Commission received a letter by Tom & Co Legal enclosing the submission to the notices of intention.

21. The submission provides a response to each of the relevant facts and information held by the Commission regarding the Provider and Ms Reid, as outlined in the notices.

22. Compliance QLD has undertaken a review of the submission. Compliance QLD's analysis and findings are provided in Attachments 4, 5 and 6 for your consideration.

23. For the reasons set out in the documents provided, Compliance QLD considers that the information supplied in the submission fails to demonstrate that Forward Focused Group or Ms Vida Reid have complied with their requirements under the Act.

24. Compliance QLD recommends you, as the delegate, review and consider the information contained in the documents in making your decision.

Delegation

25. The Delegations instrument, No. 2 of 2022 dated 21 June 2022, and effective 22 August 2022, provides the Branch Head, North Central West with delegation against NDIS Act s73N, s73P, and s73ZN.

Legislative Obligations

26. Section 73J of the NDIS Act provides that,

A person contravenes this section if the person:

(a) is a registered NDIS provider; and

(b) breaches a condition to which the registration of the person is subject.

Civil penalty: 250 penalty units.

27. The conditions include those provided at section 73F of the NDIS Act. Section 73F of the NDIS Act states that the registration of a person as a registered NDIS provider is subject to a number of conditions. These conditions include:

28. Section 73F(2)(b) - a condition that the person comply with all applicable requirements of the NDIS Code of Conduct;

29. Section 73F(2)(c) - a condition that the person comply with all applicable standards and other requirements of the NDIS Practice Standards;

30. Section 73T(1) of the NDIS Act states that the National Disability Insurance Scheme rules may make provision for or in relation to standards concerning the quality of supports or services to be provided by registered NDIS providers.

31. Further, the NDIS Act s73V provides that NDIS providers and members of the key personnel of NDIS providers must comply with the NDIS Code of Conduct, and

(3) A person contravenes this section if the person:

(a) is subject to a requirement under the NDIS Code of Conduct; and

(b) fails to comply with the requirement.

Civil penalty: 250 penalty units.

32. The NDIS Act s73N provides for the Suspension of registration on the Commission's initiative, for a specified period (not longer than 30 days) where

32.1. S73N *(1)(a) the Commissioner reasonably believes that the person has contravened, is contravening, or is proposing to contravene, this Act*; or…

32.2. S73N *(1)(e) the Commissioner is no longer satisfied that the key personnel of the person (if any) are suitable to be involved in the provision of supports or services to people with disability, having regard to any matters prescribed by the National Disability Insurance Scheme rules for the purposes of this paragraph.*

33. The NDIS Act s73P provides that registration can be revoked if the same circumstances as articulated at 14.1 are met.

34. Further, the NDIS Act s73ZN provides that Banning orders can be given if the same circumstances as articulated at 14.1 arise.

35. Both Revocation of registration and Banning orders require a process to be followed whereby a notice is issued to the relevant party affording them an opportunity to make submissions on the matter.

Financial Implications

36. Nil – activities form part of normal operations.

Regulatory Impact

37. Revocation of the registration and ban of a provider operating in a central, city location.

Consultation

38. Internally, WA State Office.

39. Internally, Legal Services Branch were consulted on the original submissions.

40. Internally, Registration team have provided advice about matters impacting registration and revocation of registration.

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Attachments (remove heading if nil)

Attachment 1: Notice of Revocation of Registration – Forward Focused Group

Attachment 2: Notice of Banning Order – Forward Focused Group

Attachment 3: Notice of Banning Order – Vida Reid

Attachment 4: Review of Submission_Breach Requirement to be Registered for SDA

Attachment 5: Review of Submission_Breach Code of Conduct

Attachment 6: Review of Submission_Breach NDIS Practice Standards

NDIS Quality and Safeguards Commission

Review of submission
Breach of NDIS Act s73B
Forward Focused Group Pty Ltd

Information/Evidence/Other	Reference Location	Summary of information received from submission from Provider and Ms Reid c/o Tom & Co Legal	Comments
National Disability Insurance Scheme (Provider Registration and Practice Standards) Rules 2018 **7 Classes of supports for which NDIS providers must be registered** (1) A person must be registered under section 73E of the Act to provide specialist disability accommodation under a participant's plan.	National Disability Insurance Scheme (Provider Registration and Practice Standards) Rules 2018 (legislation.gov.au)	D22/222033 – Confirms that Forward Focused Group Pty Ltd (4-4GHG-1073) is a registered NDIS provider and the registration groups.	Parties agree.
Forward Focused Group Pty Ltd. Internal and external facing information about registration status. Including registration groups: • Household tasks • Assist – travel/transport	Att 6A (D22/184618) – Statement of Reasons Att 4 (D22/169539) – Provider Register External Att 38 (D22/184884) – COS Provider Profile	D22/222033 – Confirms that Forward Focused Group Pty Ltd (4-4GHG-1073) is a registered NDIS provider and the registration groups.	Parties agree.
It is alleged that Forward Focused Group is providing supports to participants that the provider is not registered to provide. The FFG website (www.forwardfocusedgroup.com.au) in its 'Service Offerings' offers SDA (Specialist Disability Accommodation) at three suburb locations. The Forward Focus Group Facebook page posted on at least two occasions 18 July 2022 and 28 September 2022 with the SDA service offering. • The Forward Focused Group website indicates that they are a registered NDIS provider (Att 28). The website also indicates that they can offer SDA (Att 26) at three different locations: Safety Bay, Northbridge and Stirling (Att 27 and 28). • The Forward Focus Group website links to a facebook page (Att 33).	Att 26 (D22/184649) – Service Offerings FFG Website Att 27 (D22/184650) – SDA Properties Screenshot Att 28 (D22/184651) – SDA Properties and Registered Provider Statement Screenshot Att 29 (D22/184662) – Hybrid Hive website screenshot Att 31 (D22/184665) – Hybrid Hive Service Offering screenshot Att 33 (D22/184702) – FFG Facebook Screenshot Offering SDA Att 35 (D22/184706) – Hybrid Hive Facebook Screenshot Offering SDA	D22/222033. Agree that SDA has been promoted on their Facebook page. State that it is in the context of a partnership agreement with Yaran Property Group and Ability Housing – SDA providers. State they do not provide SDA and could assist participants to attain SDA. Business relationship between parties. State a review of invoicing will show that FFG Pty Ltd/V. Reid are not involved in providing accommodation.	Language on the website and facebook conveys the meaning that FFG Pty Ltd is the provider. "FFG currently has 4 (four) SDA vacancies across Stirling and Safety Bay. To learn more about SDA and our current vacancies, get in touch with our team below!" includes email address admin@ffg.net.au. The submission does not provide evidence of the Provider's arrangements with Yaran Property Group or Ability Housing. Commission records show that Yaran Property Group Pty Ltd registration expired on 1 December 2021 (Reg ID: 4-4GHG-653).

Information/Evidence/Other	Reference Location	Summary of information received from submission from Provider and Ms Reid c/o Tom & Co Legal	Comments
• Facebook post of 28 September 2022 at 12:43 states FFG has four SDA vacancies and provides contact details for people seeking further information. • Facebook post 18 July 2022 (Att 39) is promoting their ability to offer a wide range of accommodation including SDA. • The Hive website (Att 29) includes information about home and living support services provided (Att31). • The website states the locations as Safety Bay, Northbridge and Cottesloe. • The Hive website (Att 29) links to a facebook page (Att 35). • Facebook post five days prior to 14 October 2022 (Att 35) the business is promoting their ability to offer a wide range of accommodation including SDA. • Facebook post 5 September 2022 (Att 36) the business is promoting their ability to offer a wide range of accommodation including SDA. Accommodation at Safety Bay, Cottesloe and Northbridge	Att 36 (D22/184707) – Hybrid Hive Facebook Screenshot Offering SDA Att 39 (D22/184915) – FFG Facebook Screenshot Offering SDA	Note shareholding in Infinity Living Options Pty Ltd.	Email from Ms Reid dated 1 July 2022 (D22/184944) states “Yaran Property have stated they need to get paid as per [participant]’s housing arrangements with them.” The information supplied fails to demonstrate the Provider has complied with s73B of the NDIS Act.

NDIS Quality and Safeguards Commission

Review of submission

Breach of NDIS Act s73V

Forward Focused Group Pty Ltd, Vida Reid

Elements of Breach (es):	Information/Evidence/Other	Evidence Reference Location	Summary of information received from submission from Provider and Ms Reid c/o Tom & Co Legal	Comments
Subject to a requirement under the Code of Conduct.	Forward Focus Group are the over-arching name for Forward Focused Group Pty Ltd and Hybrid Hive Pty Ltd directed and run by Vida Reid and Simon Reid. Code-covered person – NDIS Provider and persons employed or otherwise engaged by an NDIS provider. Forward Focused Group Pty Ltd, Vida Reid are 'code-covered person'.	Att 6A (D22/184618) – Statement of Reasons	-	-
Failed to comply with a requirement.	**6(a) - Act with respect for individual rights to freedom of expression, self-determination and decision-making in accordance with applicable laws and conventions** 1. In relation to participant, Alexsis Bott, FFG sought to obtain access to and control of participant funds. The email trail is initiated by an FFG employee to a plan manager seeking release of funds. The participant confirms that they, "won't be withdrawing funds from Marc at Manage Mode. I	Att 6 (D22/165201) – Key Issue Identification Template Att 6A (D22/184618) – Statement of Reasons Att 45 (D22/184969) – Alexsis Bott	1. Submission provides background on a disagreement between Manage Mode and FFG. FFG identified a conflict of interest. "This was because Manage Mode were providing the same services to Ms Bott as FFG." Submission states that "to remain with FFG, [Ms Bott] would need to change her	1. The Provider appears to lack an understanding of the meaning of "conflict of interest". The submission confirms the removal of choice for the participant in relation to their Plan Manager if seeking to also retain the services of FFG Pty Ltd as a provider. The submission confirms that transition of services

NDIS Quality and Safeguards Commission

Elements of Breach (es):	Information/Evidence/Other	Evidence Reference Location	Summary of information received from submission from Provider and Ms Reid c/o Tom & Co Legal	Comments
	actually never said I would do this but was advised by Vida I should." Ms Reid, as FFG Founding Executive Director, then states conflict of interest and states "we will be terminating your services with us effective immediately". (Att 45).	Changing Plan Manager Att 43 (D22/184942) – Service Termination Sarah-Jane Clulow	plan manager" Submission includes reproduction of an email issued 10 June 2022.	and continuity of services was not supplied to the participant. The information supplied fails to demonstrate the Provider or Vida Reid have complied with the requirement under the Code of Conduct.
	2. Series of emails 24 June 2022 to 19 June 2022 provided by a former account manager and FFG employee regarding participant Sarah-Jane Clulow advising a four week notice for service termination. (Att 43) - Ms Clulow provides notices and requests that further correspondence be directed to a different person, Tammy Mogg. - In a subsequent internal email to Rejaul Alam, Vida Reid and Simon Reid it is disclosed that Ms Clulow was contacted via phone call about her email. - It also comments that the participant is seeking review of 'another invoice' for services not received.		2. Regarding emails 24 June to 19 July [correction], submission states "We have reviewed the emails in our Clients' possession and cannot find any language that would be deemed a veiled or direct threat, bullying or harassment."	2. The submission does not explain the email response from the Provider / Ms Reid regarding the participant's request for review of an invoice for services not received, or any other correspondence between the Provider / Ms Reid and the participant. The information supplied fails to demonstrate the Provider or Vida Reid have complied with the requirement under the Code of Conduct.
	3. On 1 July, FFG responds to an account	Att 44 (D22/184944) –	3. Regarding email on July 2022, submission states	3. The submission does not explain the email response

NDIS Quality and Safeguards Commission

Elements of Breach (es):	Information/Evidence/Other	Evidence Reference Location	Summary of information received from submission from Provider and Ms Reid c/o Tom & Co Legal	Comments
	statement from a supplier stating that, ""we will no longer pay any invoices for Sarah. She has terminated her contract with us." [Note within four week period of ongoing service provision. Release personal client information to an external party]. (Att 44) Complaint 430838840 – July 2022. The participant advises the Commission that FFG have claimed all of their Support Coordination funds and are acting fraudulently. The NDIA confirms overutilization of the plan. Also that FFG/Vida Reid are threatening eviction if invoices to The Hive are not paid. And on 14 July the participant advised she has received an eviction notice and has 60 days to find new accommodation. (Att 12)	Service Termination Sarah-Jane Clulow Att 12 (D22/169604) – Sarah-Jane Clulow Complaint_06.07.22	"We have reviewed the emails in our Clients' possession and cannot find any language that would be deemed a veiled or direct threat, bullying or harassment."	from the Provider regarding the termination of the contract. The information supplied fails to demonstrate the Provider, or Ms Reid, have complied with requirement under the Code of Conduct
	4. Series of emails 15 June 2022 to 19 June 2022 provided by a former account manager and FFG employee regarding participant Corina Abraham ceasing some services with Hybrid Hive. (Att 42) - The participant seeks to meet to discuss their concerns. - Although not included in the original email a response is forthcoming from FFG, Vida Reid. - By email 19 June FFG through Ms Reid purports to cease support coordination and terminate the contract for all services with immediate effect. The email claims "ongoing	Att 42 (D22/184938) – Service Termination Corina Abraham	4. Regarding emails 15 June to 19 June 2022, submission states "This allegation concerns Hybrid Hive, which is a separate legal entity from FFG, In so far as this allegation concerns, Ms Reid, we have reviewed a series of email exchanges between 15 June 2022 and 19 June 2022. Copies of the emails in our possession do not indicate any request to meet. The	4. Records show that the participant requested to meet with FFG in email dated 15 June 2022 (D22/184938). The submission does not explain the email response from Ms Reid regarding the termination of the contract or the perceived threat. The information supplied fails to demonstrate that Ms Reid has complied with requirement under the Code

NDIS Quality and Safeguards Commission

Elements of Breach (es):	Information/Evidence/Other	Evidence Reference Location	Summary of information received from submission from Provider and Ms Reid c/o Tom & Co Legal	Comments
	abusive manner of our staff by yourself and the break in trust" as the grounds. - The email includes a perceived threat that invoices are to be paid immediately or be reported to the NDIS. 5. Email 16 June 2022 sent by Ms Reid to participant, Ms Abraham, provides that the support worker has a non-compete and non-disclosure contract which will prevent her for working privately for the participant. It also states that if the participant had "come to us in good faith…I would have said okay."	Att 42 (D22/184938) – Service Termination Corina Abraham	emails advise that she wants to cease her support worker services with The Hive." 5. Regarding email 16 June 2022, submission states "Our Clients presume this allegation concerns Ms Janeece Ferreira, employed by FFG as a support worker. The email in question concerned Ms Ferreira's breach of contract of employment with FFG by her privately providing support services to Ms Abraham. It was disclosed in the email to Ms Abraham that: "Janice[sic] has a non compete and non disclosure contract with us which prevents her from working with you even if you let us go. What is more concerning to me is tax payer money and government funds being	of Conduct 5. Email from Ms Reid to participant Ms Abraham dated 16 June 2022 also states "I would have hoped someone like yourself would have educated Janice to go about things the right way…. "We require 4 weeks notice as per the contract you have signed or an exit fee of $4000 to be paid based and calculated on supports provided to you over-time." Email response from Ms Abraham alleges that the Provider did not provide over-time supports. The information supplied fails to demonstrate that Ms Reid has complied with requirement under the Code of Conduct

Elements of Breach (es):	Information/Evidence/Other	Evidence Reference Location	Summary of information received from submission from Provider and Ms Reid c/o Tom & Co Legal	Comments
			used inappropriately. We rostered Janice on and paid her for the same hours she has then charged you again and in fact for more. This needs to be reported as it is fraudulent activity. … If yourself or Janice has come to us in good faith and asked us to have Janice privately I would have said okay". This email complies with the National Disability Insurance Scheme (Code of Conduct) Rules 2018 and does not include any veiled or direct threats, bullying or harassment as alleged. For the sake of clarity, non-compete and non-disclosure clauses are legal and, in fact, commonplace.	
	6. Email 16 June 2022 by the Founding Director to participant, Ms Abraham, "I would like all of your outstanding invoices paid immediately please or I will report this to the NDIS".	Att 42 (D22/184938) – Service Termination Corina Abraham	6. Submission provides email exchange between Ms Reid and participant Ms Abraham and states "Our Clients have other evidence to support the	6. The submission does not explain the conduct of Ms Reid in the emails to participant Ms Abraham dated 16 June to 19 June 2022.

NDIS Quality and Safeguards Commission

Elements of Breach (es):	Information/Evidence/Other	Evidence Reference Location	Summary of information received from submission from Provider and Ms Reid c/o Tom & Co Legal	Comments
			claim that Ms Abraham was abusive and rude to its staff. Given the circumstances, we believe this statement by our client was appropriate. It is with respect to the Commission that it has misinterpreted and misconstrued the email exchange between Ms Abraham and our Client. It is submitted that the email was not delivered as a veiled or direct threat, nor was it bullying or harassing in nature. Our Clients have workplace health and safety obligations to its employees and other persons. We submit in light of those obligations our Clients acted appropriately. Furthermore, it is reasonable to expect FFG staff to be treated with courtesy and respect by all persons including from FFG clients."	The information supplied fails to demonstrate that Ms Reid has complied with requirement under the Code of Conduct
	6(d) - Act with integrity, honesty and transparency 7. Information about participants Tiffany Rose and Andrew Hahn on dates known between 26	Att 46 (D22/186568) - Tiffany Rose	7. Submission states	7. The criminal proceedings do not preclude the Provider

NDIS Quality and Safeguards Commission

Elements of Breach (es):	Information/Evidence/Other	Evidence Reference Location	Summary of information received from submission from Provider and Ms Reid c/o Tom & Co Legal	Comments
	November 2021 and 14 June 2022, which show that FFG generated invoices that did not match the services provided, or were generated without the necessary Plans / Services Agreements in place. (Att 46 and 47) Emails dated 3 May and 9 May 2022, which show that Vida Reid is withholding information from other FFG staff on potentially fraudulent invoices. (Att 48 and 49) <u>Example 1</u>: Email from Janine Hall, FFG Support Coordinator to Rejaul Alam, CFO dated 3 May 2022. Janine Hall's email raised a question regarding an invoice for Support Coordination services for a participant that she did not provide. The email states "My understanding is that there is $3097.71 in Support Coordination to cover this period, however I just received the end of month statement from Assist Plan Managers and I noticed that the balance remaining is only $393.87. I then noticed that a single invoice had been paid to FFG for $2027.84 for Support Coordination. This is not for any work that I have provided for Marisha or anyone else from FFG". (Att 48) <u>Example 2</u>: Email from Vida to employee dated 9 May 2022, "Whilst I appreciate your thoroughness in dealing with clients please remember that I do work on participants as well. I keep my work and my notes private as sometimes they may be about staff or	Invoices Att 47 (D22/186569) – Andrew Hahn Invoices Att 48 (D22/186578) – Marisha Lombard Invoices Att 49 (D22/186580) – Marisha Lombard Invoices	"Our Clients emphatically deny these allegations. These matters are currently the subject of criminal proceedings. It is submitted that it is inappropriate for NDIS to pursue these allegations until the criminal proceedings have been determined. Accordingly, and in the interests of procedural and substantive justice, we respectfully request that FFG's fitness to hold an NDIS registration not be determined until after the said proceedings are completed.	from providing information to support the submission or provide any details on how the Provider processes invoices in a transparent manner. The information supplied fails to demonstrate that the Provider or Vida Reid have complied with requirement under the Code of Conduct

Elements of Breach (es):	Information/Evidence/Other	Evidence Reference Location	Summary of information received from submission from Provider and Ms Reid c/o Tom & Co Legal	Comments
	complaints or other work clients have requested that they have advised not to be disclosed to other due to privacy and dignity."…."I am aware that you have recently gained access to some portals and kindly ask that you do not access these as they go against our policy and procedures."			
	8. Correspondence between FFG and participants which reflects a lack of integrity and honesty in dealings including accusations of non-payment or broken trust as grounds for FFG to immediately terminate engagements with participants. <u>Example 1:</u> Termination Notice Letter from DFG Legal WA dated 31 March 2022 requesting that participant Andrew Hahn vacate a FFG-managed property due to "serious misconduct" and "failing to pay the fortnightly lodging fee". (Att 50) Email from advocate of participant Andrew Hahn dated 27 March 2022 requesting that threats of eviction from FFG cease. Email states "I have also reviewed Andy's Lodging Agreement with Forward Focused Group dated 21 January 2022. Rent payments per this agreement are paid up to date and Andy has not breached any terms of the Lodging Agreement. Please immediately discontinue		8. Submission states "It appears to our Clients that the Commission has not examined all the correspondence regarding Andrew Hahn and his living arrangements and is, instead, relying on one excerpt from one email dated 27 March 2022. Our Clients are able to provide detailed evidence to show that Mr Hahn was a difficult and violent individual that was regularly evicted from accommodation due to safety concerns to other residents. Furthermore, the Autism Association had written to our Clients about Mr Hahn carrying a knife to providers offices on multiple occasions, including the	8. The submission provides excerpts of email exchanges between FFG, the participant Mr Hahn and the participant's Support Coordinator and a letter from DFG Legal WA to the participant. The emails from FFG and the DFG Legal letter contain a number of allegations of violent behavior by the participant. The submission does not provide any evidence of, or information that strongly supports the allegations. The information supplied fails to demonstrate that the Provider or Vida Reid have complied with requirement

Elements of Breach (es):	Information/Evidence/Other	Evidence Reference Location	Summary of information received from submission from Provider and Ms Reid c/o Tom & Co Legal	Comments
	unsubstantiated threats of eviction. Threats of eviction can be distressing to anybody and are particularly unwarranted in a disability housing provision context." (Att 51) Example 2 Participant Corina Abraham sought to amend her service agreement with FFG. On 19 June 2022, FFG through Ms Reid purport to cease support coordination and terminate the contract for all services with immediate effect. The email claims "ongoing abusive manner of our staff by yourself and the break in trust" as the grounds. (Att 42) **6(f) – Take all reasonable steps to prevent and respond to all forms of violence against, and exploitation, neglect and abuse of, people with disability** 9. Seeking to act as both the service provider and the authorized person on behalf of a participant to engage with the NDIA in relation to support/funding decisions. Example 1: FFG Document titled 'FM Consent Third Party to Act' which provides ongoing consent for any Forward	Att 50 (D22/186592) – Andrew Hahn Termination Notice Att 51 (D22/186590) – Andrew Hahn Threats of Eviction Att 52 (D22/186597) – FFG Reid Consent to Act	possession of two swords kept in the house." 9. Submission states "In relation to Ms Goodwin, her consent was obtained quite some time ago. At the time, Meghan Goodwin was homeless and living on the streets. Our Client paid for her accommodation, and she	under the Code of Conduct. 9. The submission does not provide evidence of the participant Ms Goodwin's request that the FFG employee act as her third-party representative. The information supplied fails to demonstrate that the

NDIS Quality and Safeguards Commission

Elements of Breach (es):	Information/Evidence/Other	Evidence Reference Location	Summary of information received from submission from Provider and Ms Reid c/o Tom & Co Legal	Comments
	Focused staff member (contact Vida Reid), including consent to request review of NDIA decision, manage a complaint made by participant Meghan Goodwin (Att 52) <u>Example 2:</u> Letter from DFG Legal WA stating: "Ms Vida Reid holds the current appointment as Meghan's legal plan nominee and next of kin, and we enclose the relevant documentation for your review." (Att 52)		requested our Client's assistance to obtain her Centrelink pension as she claimed: "*she had fallen through the cracks*" of the system. This is when the authority was voluntarily given to our Client to act as a third party. Meghan specifically requested our Client's employee Terri Roberts to act as her third-party representative."	Provider or Vida Reid have complied with the requirement under the Code of Conduct.

NDIS Quality and Safeguards Commission

Review of submission

Breach of NDIA Act s73J
S73F(2)(c) > 73T(1) > Rules > NDIS Practice Standards > Schedule 8
Forward Focused Group Pty Ltd, Vida Reid

Element	Information/evidence/source	Reference Location	Summary of information received from submission from Provider and Ms Reid c/o Tom & Co legal	Comments
Registered NDIS Provider	NDIS Commission provider register displayed on the website. COS provider profile. Printout and Screenshots included.	Att 4 (D22/169539) – Provider Register External Att 38 (D22/184884) – COS Provider Profile	D22/222033 – Confirms that Forward Focused Group Pty Ltd (4-4GHG-1073) is a registered NDIS provider.	Parties agree.
Breaches a condition – Complaints management and resolution	Commission records show that the Commission received 32 complaints in relation to Forward Focused Group from 13 April 2021 to 10 August 2022. The Commission has undertaken an analysis of complaints and identified 11 complaints whereby the participants lodging the complaints have stated that they wish to remain anonymous, or have faced or fear repercussions from raising their complaints directly with Ms Reid or Forward Focused Group (Att 14). The reasons stated by the complainants for not reporting their complaints directly with Ms Reid or Forward Focused Group indicate that Ms Reid and Forward Focused Group are not ensuring that complaints are welcomed, acknowledged, respected and well-managed. Example: Complaint #4-38279458621 PPT is scared to report to Police until she is able to find alternative accommodation due to staff and owner aiming their attention at her for reporting issues. Complaint #4-35886177923	Att 14 (D22/169610) – Summary of Complaints	Submission states that FFG clients are provided with: -client information booklet -client money and property policy -governance policy -feedback and complaints form (this has a specific clause advising clients how to make a complaint to the NDIS Commission) -feedback and complaints policy -advocacy or support person request form; and -provision of supports policy - dedicated email for complaints and feedback. Submission states that website contains links to Complaints policy and the Commission.	The response contains many statements about documents available and commitments to practice. The submission does not provide records or any supporting information that demonstrate how the Provider or Vida Reid have managed and resolved complaints or ensured that complaints are welcomed and respected. Access to the website is restricted (D22/222456). The information supplied fails to demonstrate the Provider or Vida Reid have achieved the outcome required to meet the Practice Standard.

Element	Information/evidence/source	Reference Location	Summary of information received from submission from Provider and Ms Reid c/o Tom & Co legal	Comments
	"I would like to remain anonymous due to security reasons as I'm scared for my family at this moment in time with most recent events."		Submission states that staff are trained and comply with a list of activities. Comment that these documents can be supplied, if required. Submission states that the Provider has a complaints register. A copy of the Feedback and Complaints Management policy and Feedback and Complaints form is distributed by FFG to each participant. Submission states that electronic records retained by FFG can be verified by the Commission.	
Breaches a condition – Human Resource Management	Therapy team, Sally See (Masters in Sexology and specialises in couples-therapy) Janine Hall, former Support Coordinator FFG has alleged that a Ms Sally See was employed by FFG as a counsellor until 5 April 2022 (Att 9). This is supported by a search conducted on the FFG website (Att 25). According to searches conducted on 13 October 2022, Ms See does not hold qualifications with either the Australian Counselling Association (www.theaca.net.au) or with the Australian Health Practitioner Regulation Agency (www.ahpra.gov.au). (Att 32). As at 14 October 2022 there is no record of a "Sally See" in the worker screening or contact information held by the Commission.	Att 6A (D22/184618) – Statement of Reasons Att 9 (D22/186518) – Sally See FFG Counsellor Att 25 (D22/184648) – FFG Website Screenshot Att 32 (D22/184671) – Searches for Counsellor Qualifications	Submission states that Ms See holds a Master in Sexology; a Master in Counselling Practice; and an Honours Degree in Psychology with Counselling. Submission confirms that Ms See does not hold ACA or AHPRA qualification. Submission states that Ms See is registered with the Psychotherapy and Counselling Federation of Australia (PCFA).	A copy of any qualifications has not been provided. No details about Worker Screening clearance have been provided. A search of the PCFA databases (D22/222411) does not locate Sally See as registered with them. The information supplied fails to demonstrate the Provider has achieved the outcome required to meet the Practice Standard.